

DEPARTMENT OF VETERANS AFFAIRS

SOLE SOURCE JUSTIFICATION UNDER SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL ITEMS IN ACCORDANCE WITH RFO FAR 12.

Acquisition Plan Action ID: 36C242-26-AP-2346

- 1. Contracting Activity:** Department of Veterans Affairs, VISN 02, Network Contracting Office, Appletree Business Park, 2875 Union Road, Suite 3500, Cheektowaga, NY 14227. Organizational Activity: Margaret Cochran Corbin VA Medical Center, 423 E. 23rd St., New York, NY 10010 thru 2237# 630-26-2-3086-0186.
- 2. Nature and/or Description of the Action Being Processed:** The Margaret Cochran Corbin VA Medical Center is requesting the brand name only purchase of six (6) camera ready Steris Harmony Air ALYON dual ceiling mounted surgical lights with their associated drop tubes, ceiling plates and wall control boxes. Two (2) Harmony Air ALYON Triple ceiling mounted surgical lights with their associated accessories are also required. In addition to this equipment, delivery, installation, deinstallation, disposal, and clinical and technical training services are required. The current ceiling mounted surgical OR light fleet is past the recommended replacement date and any further maintenance of this equipment is considered beyond economical repair. This requirement will be awarded as a new contract and pricing for this contract will be *firm-fixed* price.
- 3. Description of Supplies/Services Required to Meet the Agency's Needs:** This procurement is for the brand name only purchase of Steris HarmonyAIR ALYON Operating Room Lighting System to replace existing operating room (OR) lights across Operating Rooms 1-8 at Margaret Cochran Corbin VA Medical Center. The current dental chair fleet is past the recommended replacement date and any further maintenance of this equipment is considered beyond economical repair. The new lighting systems will improve surgical visibility, enhance patient safety, enable modern imaging compatibility, and support advanced procedural workflows essential to veteran care.

Item #	Description	Quantity
001	HarmonyAIR ALYON Dual Light, Camera Ready (EA=1)	6
002	ALYON Drop Tube and Ceiling Plate 7.9" / 200MM (EA=1)	6
003	ALYON Wall Control Rough In Box (EA=1)	6
004	Deinstallation of Lights	6
005	Install Preassembled Harmony Light, No FPM	6
006	Disposal of Light	6
007	HarmonyAIR ALYON Triple Light, Camera Ready (EA=1)	2
008	ALYON Drop Tube and Ceiling Plate 7.9" / 200MM (EA=1)	2
009	ALYON Wall Control Rough In Box (EA=1)	2
010	Deinstallation of Lights	2
011	Install Preassembled Harmony Light, No FPM	2
012	Disposal of Light	2
013	Travel for Service Field Trainer	1
014	Customized Training - 1 Day / Up to 5 Trainees	1

015	Project Design, Program Planning & Coordination Support Services Surgical	1
016	CUSTOMER REQUESTED DELIVERY TO INSIDE OF BUILDING (EA=1)	8

4. Statutory Authority Permitting Restricted Competition:

RFO FAR 12 ACQUISITION OF COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES. The statutory authority for applying the Simplified Procedures for Commercial Items of RFO FAR 12 is 41 U.S.C. § 1901 and is implemented by RFO FAR 12.201-1 for restricting competition on this procurement. **Competition is restricted on this procurement for the reason below:**

- (X) (1) Only One Responsible Source and No Other Supplies or Services Will Satisfy Agency Requirements per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (2) Unusual and Compelling Urgency per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (3) Industrial Mobilization, Engineering, Developmental or Research Capability or Expert Services per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (4) International Agreement per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (5) Authorized or Required by Statute per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (6) National Security per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;
- () (7) Public Interest per 41 U.S.C. § 1901 as implemented by RFO FAR 12.201-1;

5. Demonstration that the Contractor's Unique Qualifications or Nature of the Acquisition Requires the Use of the Authority Cited Above (applicability of authority):

The requested brand name only Steris HarmonyAIR ALYON Operating Room Lighting System is the only light on the market that has four adjustable pattern size options in the 6.7 to 11 inch range. Other lights on the market only have two pattern size settings at either 6.3 or 9.1 inches. Having a higher maximum pattern size as well as more pattern size options is required by the station, as it gives clinical staff the ability to optimize surgical field illumination for each case.

Additionally, the Steris ALYON light comes equipped with built in sensors that detect obstructions in the surgical field. If obstructions are detected, the light will automatically brighten unobstructed light emitting diodes (LEDs) and dim obstructed LEDs to provide optimal illumination of the surgical site. This technical feature is required as it maximizes surgical site illumination and improves operational efficiency. No other surgical light on the market is designed with this capability.

Furthermore, the Steris ALYON light operates with a color rendering index (CRI) of 98. Procuring a light with the highest CRI on the market is required as this provides surgeons with the most accurate color representation, which is essential to determine which anatomy is currently in the surgical field. No other surgical light on the market operates with a CRI of 98. Since the Steris ALYON is the only light that possesses these technical features on the market, the Margaret Cochran Corbin VAMC cites the Steris as the only responsible brand and no other brand on the market will satisfy agency requirements. The required brand name only HarmonyAIR ALYON Operating Room Lighting System meets the needs of the program office and allows staff to continue providing high quality care to veterans without any unacceptable delays in patient care.

6. Description of Efforts Made to ensure that offers are solicited from as many potential sources as deemed practicable:

CO reached out to the OEM, Steris Corporation, on 3/23/2026 for a list of authorized distributors. On 3/23/2026, Steris responded noting the following two (2) authorized

distributors of the required HarmonyAIR ALYON Operating Room Lighting System including: [REDACTED]

[REDACTED] The requested equipment will be solicited on the open market as unrestricted because the submitted offer from Buffalo Supply Inc. (Small Business) did not comply with mandatory clauses 52.219-14, *Limitations on Subcontracting. (OCT 2022) (DEVIATION NOV 2025)*, 52.219-33, *Nonmanufacturer Rule. (SEP 2021) (DEVIATION NOV 2025)* (see email sent on 4/20/2026 from Buffalo Supply Inc.).

7. Determination by the CO that the Anticipated Cost to the Government will be Fair and

Reasonable: With competition, it is anticipated that pricing will be fair and reasonable to the government as offerors are required to submit their best terms and conditions.

8. Description of the Market Research Conducted and the Results, or a Statement of the Reasons Market Research Was Not Conducted:

A search on SBA Small Business Search using NAICS code 339113 yielded four (4) SD/VOSB results. A search on SAM.gov/contracting (FPDS) showed one previously awarded similar contract – VA Contract 36C24920N0592 which was awarded on 7/15/2020. A search on ADDS UP using keywords “HarmonyAIR ALYON Operating Room Lighting” also showed previously awarded VA Contract 36C24920N0592 and VA contract 36C24623P1438 awarded on 2/26/2024. Both contracts were awarded to Buffalo Supply Inc. A search on GSA using keywords “HarmonyAIR” and part number “LYH06” showed zero (0) relevant results. A search on SCMC using keyword “HarmonyAIR” yielded zero (0) relevant results. While Buffalo Supply Inc. does have an FSS contract (36F79719D0018), the required items for this procurement are all open market.

CO reached out to the OEM, Steris Corporation, on 3/23/2026 for a list of authorized distributors. On 3/23/2026, Steris responded noting the following two (2) authorized distributors of this requirement including: [REDACTED]

CO posted a solicitation (36C24226Q0511) to SAM.gov from 4/9/2026-4/21/2026. An offer was received from Buffalo Supply Inc. (small business); however, they could not adhere to the mandatory clauses 52.219-14, *Limitations on Subcontracting. (OCT 2022) (DEVIATION NOV 2025)*, 52.219-33, *Nonmanufacturer Rule. (SEP 2021) (DEVIATION NOV 2025)* (see email sent on 4/20/2026 from Buffalo Supply Inc.). Therefore, the offer is not technically acceptable, and they are not eligible for award. No offer was received from DERRAH MORRISON ENTERPRISES, LLC (SDVOSB).

9. Any Other Facts Supporting the Use of Other than Full and Open Competition:

This requirement will be solicited as unrestricted on the open market to ensure the VA receives a technically acceptable offer.

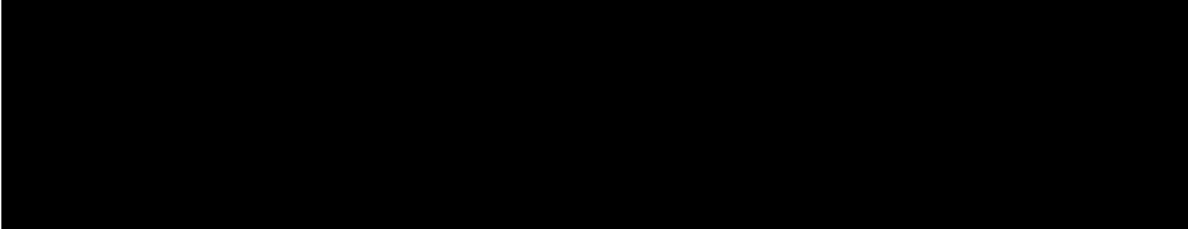
10. Listing of Sources that Expressed, in Writing, an Interest in the Acquisition:

*Firm 1: DERRAH MORRISON ENTERPRISES, LLC (SDVOSB)
15205 Holly Lane, Suite B
Austin, TX 78734*

*Firm 2: STERIS Corporation (Large Business)
5976 Heisley Road
Mentor, OH 44060*

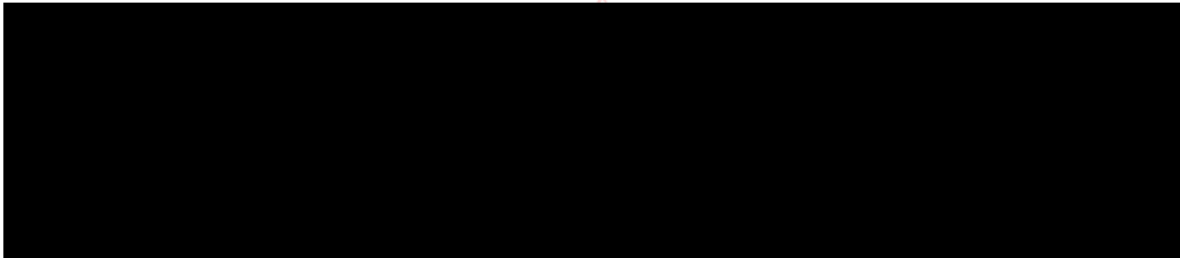
11. A Statement of the Actions, if any, the Agency May Take to Remove or Overcome any Barriers to Competition before Making subsequent acquisitions for the supplies or services required: To remove or overcome any barriers to competition before making subsequent acquisitions for the supplies requested, the Agency should reach out to OEM, STERIS Corporation, to confirm the list of authorized distributors of the requested HarmonyAIR ALYON Operating Room Lighting System remains the same. If there are additional authorized distributors in the future, then there would be an opportunity to include them in the competition.

12. Requirements Certification: I certify that the requirement outlined in this justification is a Bona Fide Need of the Department of Veterans Affairs and that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.



13. Approvals in accordance with the [VHAPM Part 806.3 OFOC SOP](#):

a. Contracting Officer or Designee's Certification (required): I certify that the foregoing justification is accurate and complete to the best of my knowledge and belief.



b. One Level Above the Contracting Officer (Required over \$350K but not exceeding \$900K): I certify the justification meets requirements for other than full and open competition.

